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| <p><b>2</b></p> | <p><b>23-01352379</b></p> <p><b><i>Balboa Capital Corporation vs. International Multiple Services LLC</i></b></p> | <p><b>Motion to Set Aside/Vacate Default and Judgement</b></p> <p><b>Motion to Set Aside Default and Default Judgment</b></p> <p>Defendant Magda Quesada (“Defendant”) moves to set aside the Default entered on January 5, 2024 and the Default Judgment entered on March 6, 2024. For the following reasons, Defendant’s motion is DENIED without prejudice.</p> <p><b>Procedural Requirements for a Motion Brought Pursuant to Code of Civil Procedure Section 473, Subdivision (b)</b></p> <p>Code of Civil Procedure Section 473(b) provides that: “The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” An application under section 473(b) shall be accompanied by a copy of the answer or other pleading proposed to be filed therein; and be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. (Code Civ. Proc., § 473, subd. (b).)</p> <p>Defendant Quesada did not file the required proposed pleading. Although it appears that she intended to attach a proposed answer as Exhibit A, the attachment was not included in the filing. (See ROA # 107.) Defendant Quesada has not complied with the procedural requirements of this motion.</p> <p><b>Motion Set Aside Default and/or Default Judgment</b></p> <p>The Civil Procedure Code authorizes the court to “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).)</p> <p>The requirement that the judgment or order have been entered through “inadvertence, surprise, excusable neglect, or mistake” is “not meaningless, and the party requesting such relief must affirmatively show that the situation is one which clearly falls within such category.” (<i>In re Wolper’s Estate</i> (1956) 146 Cal.App.2d 249, 251.)</p> <p>In a motion to set aside a default judgment or order under section 473(b), the initial burden is on the moving party to prove excusable neglect by a “preponderance of the evidence.” (<i>Kendall v. Baker</i> (1988) 197 Cal.App.3d 619, 624.)</p> <p>Here, Defendant has not met her burden to show that the Default and Default Judgment were entered as a result of mistake, inadvertence, surprise, or excusable neglect. Defendant did not submit any evidence in support of her motion and, thus, did not prove mistake, inadvertence,</p> |
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surprise, or excusable neglect by a preponderance of the evidence. The motion is denied without prejudice.

### **Motion to Quash Service of Summons and Complaint**

Improper or invalid service is properly challenged by a motion to quash. (*Board of Supervisors v. Superior Court* (1994) 23 Cal.App.4th 830, 855, fn. 4; Code Civ. Proc., § 418.10, subd. (a)(1).)

When a defendant moves to quash service, the burden is on the plaintiff to establish jurisdiction by a preponderance of the evidence. (*School Dist. of Okaloosa County v. Superior Court* (1997) 58 Cal.App.4th 1126, 1131.) However, this burden shifts when a properly executed proof of service has been filed. Filing a proof of service that complies with the applicable statutory standards creates a rebuttable presumption that service was proper. (*Floveyor Int'l, Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795; *American Exp. Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.)

The California Supreme Court has adopted a “liberal construction” of California statutes governing service of process. (*Pasadena Medi–Center Associates v. Superior Court* (1973) 9 Cal.3d 773, 778; *Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 410.) So long as the defendant receives actual notice of the lawsuit, substantial compliance with the California statutes governing service of summons generally will be held sufficient. (*Pasadena Medi–Center*, 9 Cal.3d at 778; *Gibble v. Car–Lene Research, Inc.* (1998) 67 Cal.App.4th 295, 313; *Dill v. Barquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1436–1437.)

Plaintiff has filed a properly executed Proof of Service showing service of the Summons and Complaint on Defendant Quesada via substitute service. (ROA # 11.) Timothy Pinney, a registered process server, declares under penalty of perjury that he served papers by leaving the documents with Defendant Quesada’s husband and co-occupant and then mailed a copy of the Summons and Complaint to Defendant Quesada at the place where the copies were left. (*Id.*) Plaintiff’s properly executed proof of service showing service of the Summons and Complaint on Defendants via substitute service creates a rebuttable presumption that service was proper. (*Floveyor Int'l, Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795; *American Exp. Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.)

Defendant Quesada has not submitted evidence to rebut the presumption of proper service. The motion to quash is denied.

The court is sympathetic to the efforts that Defendant Quesada, a pro per litigant, has expended in presenting her case and fully recognizes the personal investment she has in this matter. However, the court must treat a self-represented party the same as a represented party and must uniformly apply the procedural and substantive rules of the legal system. (See *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247.) Defendant Quesada has not presented any evidence in support of her

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|   |                                                                                         | <p>contentions and it “would be unfair to the other parties to litigation” to ignore this fact. (<i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984-985.)</p> <p>Plaintiff to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 4 | <p><b>23-01329149</b></p> <p><b><i>Eikanas vs. Summit Healthcare REIT, Inc.</i></b></p> | <p><b>1) Motion to Challenge Privilege Clawback Attempt</b><br/> <b>2) Motion to Compel Answers to Special Interrogatories</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 5 | <p><b>23-01342492</b></p> <p><b><i>Er vs. APSEC Resolution Trust LLC</i></b></p>        | <p><b>1) Demurrer to Amended Complaint</b><br/> <b>2) Demurrer to Amended Complaint</b></p> <p>Defendant APSEC’s demurrer is OVERRULED in part as to the 1st-5th and 9th-11th causes of action and SUSTAINED in part as to the 6th-8th causes of action with leave to amend.</p> <p>Defendant ADM’s demurrer is OVERRULED in part as to the 1st-5th, 10th, and 11th causes of action and sustained in part as to the 6th and 7th causes of action with leave to amend.</p> <p><u>Judicial Notice</u></p> <p>Defendants’ requests for judicial notice are denied. Documents relating to the transactions alleged in the complaint, including the underlying loan documents, notices of default, and letters are not the subject of judicial notice.</p> <p><u>Wrongful Foreclosure</u></p> <p>The first cause of action is for wrongful foreclosure, the elements of which are: (1) the trustee or mortgagee caused an illegal, fraudulent, or willfully oppressive sale of real property under a power of sale in a mortgage or deed of trust; (2) the party attacking the sale was prejudiced or harmed; and (3) in cases where the trustor or mortgagor challenges the sale, the trustor or mortgagor tendered the amount of the secured indebtedness or was excused from tendering. (<i>Turner v. Seterus, Inc.</i> (2018) 27 Cal.App.5th 516, 525.)</p> <p>Plaintiffs have properly alleged a wrongful foreclosure. Plaintiffs allege the foreclosure was fraudulent, plaintiffs were harmed, and they tendered the amount of indebtedness. (SAC, ¶¶ 50, 56, 57.) Thus, defendants’ demurrer to the 1st cause of action is overruled.</p> <p><u>Breach of Civil Code §§ 2923.5, 2924, 2924c, and 2924f</u></p> <p>“Whenever all or a portion of the principal sum of any obligation secured by deed or trust or mortgage on real property ... [has] become due or been declared due by reason of default in payment...the trustor or mortgagor or their successor in interest ... may pay to the beneficiary or the mortgagee or their successors in interest... the entire amount due ... other than the portion of principal as would not then be due had no default occurred....” (Civil Code, § 2924c.)</p> |